

ELIZABETH II



1970 CHAPTER xxviii

An Act to make provision for the transfer to the State of New South Wales in the Commonwealth of Australia of the registered office of Hooker Estates Limited; for the cesser of application to that company of provisions of the Companies Acts 1948 to 1967; and for other purposes incidental thereto. [29th May 1970]

WHEREAS—

(1) Hooker Estates Limited (hereinafter referred to as “the Company”) is an existing company within the meaning of the Companies Acts 1948 to 1967, and is a company limited by shares:

(2) The Company carries on, exclusively within the Commonwealth of Australia, the business of stock and cattle breeders and dealers, and a wide variety of activities ancillary to the said business or connected therewith:

(3) The registered office of the Company is situated in England:

(4) Having regard to the fact that the area of operation of the Company is wholly in the Commonwealth of Australia it would facilitate the operations of the Company if it were deemed to be incorporated under the laws of the State of New South Wales in the Commonwealth of Australia (hereinafter referred to as "New South Wales") instead of under the laws of England:

(5) No procedure exists whereby the registration of a company to which the Companies Acts 1948 to 1967 apply can be transferred from England to another country:

(6) Procedure by way of winding up and dissolution of the Company and the transfer or sale of assets to a new company incorporated in New South Wales would involve loss of the identity of the Company and the disturbance of its financial structure, and would interfere with the continuity of its operation, with considerable attendant expense:

(7) It is desirable that the Company should be enabled to become a company incorporated under the laws of New South Wales without any such loss of identity, disturbance or interference and that thereupon the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to oversea companies) should cease to apply to the Company:

(8) By virtue of provisions contained in the Companies (Transfer of Domicile) Act 1968 passed by the legislature of New South Wales and subject to the several conditions set forth in that Act the Company will be enabled, upon the passing of this Act, to become a company deemed to be incorporated under the Companies Act 1961 passed by the said legislature:

(9) It is expedient that such provisions should be enacted as are in this Act contained:

(10) The objects of this Act cannot be attained without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Short title.

1. This Act may be cited as the Hooker Estates Limited (Transfer of Registration) Act 1970.

2.—(1) In this Act—

Interpretation.

“the companies’ registrar” means the registrar or other officer performing under the Companies Act 1948 the 1948 c. 38. duty of registration of companies in England;

“the Company” means Hooker Estates Limited;

“the date of registration” means the date on which under the Companies (Transfer of Domicile) Act 1968 the Company becomes a company deemed to be incorporated under the laws of New South Wales;

“existing” means existing immediately before the date of registration;

“New South Wales” means the State of New South Wales in the Commonwealth of Australia.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by or by virtue of any subsequent enactment or to any enactment substituted for the enactment, including this Act.

3. Subject to the laws in force in New South Wales, and with such legislative, governmental, municipal or other authority, concession, licence or consent as is necessary under those laws, the Company may transfer its registered office from England to a place in New South Wales. Transfer on
authorisation.

4.—(1) As soon as reasonably practicable after the date of registration the Company shall notify the companies’ registrar thereof by cablegram and shall also transmit to him by registered or insured post a copy of the certificate of incorporation of the Company in New South Wales certified by an official thereunto authorised by the laws of New South Wales and thereupon the companies’ registrar shall as from the date of registration strike the name of the Company from the register in England and from that date the provisions of the Companies Acts 1948 to 1967 (with the exception of those provisions which apply to oversea companies) shall not apply to the Company but the Company shall not thereby cease or be deemed to cease to exist but shall instead be or be deemed to be a company incorporated under the laws of New South Wales and subject thereto for all purposes shall be and be deemed to be the same company as the existing company. Registrar in
England to
strike off
register.

(2) The companies’ registrar shall retain and register the copy of the certificate of incorporation.

Copy of Act
to be
registered in
England.

5.—(1) The Company shall deliver to the companies' registrar a printed copy of this Act and he shall retain and register the copy delivered.

(2) If no such copy is so delivered within three months from the date of the passing of this Act the Company shall incur a fine not exceeding two pounds for every day after the expiration of those three months during which the default continues and any director or manager of the Company who knowingly and wilfully neglects to secure observance of the requirement of this subsection shall incur the like fine.

(3) Every fine under this section shall be recoverable summarily.

Costs of Act.

6. All the costs, charges and expenses preliminary to and of and incidental to the preparation, application for, obtaining and passing of this Act, or otherwise in relation thereto, shall be borne and paid by the Company.

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Hooker Estates Limited (Transfer of Registration) Act 1970

CHAPTER xxviii

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